

SENATE No. 617

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the pesticide board.

PETITION OF:

NAME:

Jason M. Lewis

DISTRICT/ADDRESS:

Fifth Middlesex

SENATE No. 617

By Mr. Lewis, a petition (accompanied by bill, Senate, No. 617) of Jason M. Lewis for legislation relative to the pesticide board. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 521 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the pesticide board.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 (a) There shall be established a task force to be known as the pesticide control
2 modernization and environmental protection task force. The task force shall study the
3 commonwealth's statutes, regulations, and practices governing pesticide control in the
4 commonwealth and make recommendations on the items detailed in subsection (b) of this act.

5 The task force shall consist of the following members or their designee: the secretary of
6 energy and environmental affairs, who shall serve as chair; the commissioner of agricultural
7 resources; the commissioner of conservation and recreation; the commissioner of environmental
8 protection; and the commissioner of public health. The task force shall also include 20 additional
9 members appointed by the chairs of the joint committee on environment, natural resources and
10 agriculture: 1 of whom shall be an academic expert in environmental and health impacts of

pesticides; 1 of whom shall be an ecological risk assessor with a background in ecotoxicology; 1 of whom shall be a licensed pesticide applicator with expertise in integrated pest management practices; 1 of whom shall be a representative of a statewide land conservation organization; 1 of whom shall be a representative of a regional or statewide river protection organization; 1 of whom shall be a representative of a statewide wildlife protection organization; 1 of whom shall be a representative of a statewide organization representing farms and agriculture; 1 of whom shall be a representative of a statewide organization representing organic farms and agriculture; 1 of whom shall be a representative of a statewide organization representing beekeepers or groups concerned about pollinators; 1 of whom shall be a representative of a statewide lawn care organization; 1 of whom shall be a representative of a statewide nursery and landscape organization; 1 of whom shall be a representative of a statewide consumer protection organization; 1 of whom shall be a veterinarian or academic with expertise in pesticide impacts on animals; 1 of whom shall be a representative of a statewide horticultural or grower association; 1 of whom shall be a representative of pesticide manufacturers or distributors; 1 of whom shall be a representative of a statewide organization representing cranberry growers; 1 of whom shall be a representative of a statewide organization of retailers; 1 of whom shall be a member of a town natural resources commission or equivalent; 1 of whom shall be a representative of a research institution affiliated with a public university located in the commonwealth with expertise in integrated pest management practices or organic or regenerative agriculture; and 1 of whom shall be a member of a city natural resources commission or equivalent.

(b) The task force shall review and make recommendations to improve the ability of the commonwealth to prevent and mitigate adverse impacts of pesticide use on the environment and

public health. The issues examined by the task force shall include, but not be limited to: (i) the title, structure, membership, and operation of the pesticide board and the pesticide board subcommittee currently within the department of agricultural resources; (ii) the ability of the pesticide board and pesticide board subcommittee to effectively interact with other state agencies, stakeholders, and the public; (iii) the commonwealth's relationship with federal pesticide regulators and ability to implement federal pesticide regulations on the state level in a manner consistent with pesticide use reduction goals; (iv) the effectiveness of chapter 132B of the general laws and other state and federal statutes in reducing harmful impacts of pesticide use; (v) the ability of the pesticide board and the pesticide board subcommittee to quickly and effectively implement science-based regulation of pesticides and pesticide products; (vi) the effectiveness of the commonwealth's licensing and continuing education process for pesticide users in promoting responsible, limited use of pesticides and reducing adverse impacts of pesticide use; (vii) the implementation of section 5A of said chapter 132B as it pertains to pesticide use reduction and annual reporting requirements; (viii) the impacts of current pesticide use practices on watersheds and other vulnerable natural resources and on environmental justice populations; (ix) opportunities to expand integrated pest management planning and practices to additional public lands; (x) opportunities to implement organic landcare practices on public lands; (xi) the accessibility, utility and transparency of the commonwealth's pesticide use reporting system; and (xii) public awareness and education regarding pesticide use and its environmental and health impacts.

(c) The task force shall issue a report detailing its findings and recommendations, which shall include, but not be limited to, detailed investigation of the issue areas detailed in subsection (b) and a broad assessment of the operational effectiveness of the pesticide board and pesticide

57 board subcommittee. The report shall include a recommendation of the appropriate location
58 within state government to locate the board and the subcommittee, the appropriate titles for the
59 board and the subcommittee respectively, in order to clearly communicate the roles of each body,
60 and may include recommendations of additional oversight and accountability measures necessary
61 for the board and the subcommittee to effectively meet the statutory goals of safe and responsible
62 pesticide use established in chapter 132B.

63 (d) All meetings of the task force shall be open to the public. The task force shall hold at
64 least 1 public listening session with a remote participation option. The task force shall convene
65 its first meeting no later than six months after enactment.

66 (e) The task force shall file its findings, recommendations and accompanying legislation,
67 if any, with the clerks of the house of representatives and the senate, the joint committee on ways
68 and means and the joint committee on environment, natural resources and agriculture not later
69 than one year after enactment.